IN THE HIGH COURT OF JUDICATURE AT BOMBAY
CRIMINAL APPELLATE JURISDICTION

CRIMINAL APPEAL NO.666 OF 2026

Kailas Nivrutti Yeole & Anr. … Appellants
Vs.
The State of Maharashtra & Anr. … Respondents

Mr. Aniket Nikam a/w Sumit Patil i/by Abhilasha Pawar for the Appellants.
Ms. S. S. Kaushik, APP for Respondent No.1-State.
Ms. Pravda Raut, appointed advocate for Respondent No.2.

CORAM : N.R. BORKAR, J.
DATE : 28TH SEPTEMBER 2026

P.C. :

MUGDHA MANOJ PARANJAPE
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1. This Appeal under Section 14-A of the Scheduled Caste and the Scheduled Tribes (Prevention of Atrocities) Act, 1989 takes exception to the order dated 20th July 2026 passed by the Learned Additional Sessions Judge, Yeola in Criminal Bail Application No.165 of 2026.

2. By the impugned order, the Learned Additional Sessions Judge has rejected the anticipatory bail application filed by the present Appellants, who are apprehending their arrest in Crime No.193 of 2026 registered at Yeola Police Station for the offences punishable under Sections 74, 115, 351(2), 324(2) of the Bharatiya Nyaya Sanhita, 2023 and under Sections 3(1)w(i)(ii), 3(2)(va) of the Scheduled Castes and Scheduled Tribes (Prevention of Atrocities) Act, 1989 (for short “SC & ST Act”).

3. The incident took place on 16th June 2026, while the victim was going to the court at Yeola. It is alleged that the present Appellants

accosted her and told her to withdraw the earlier criminal case filed by her against them. It is alleged that they slapped her and torn her blouse and thereby outraged her modesty.

4. I have heard Learned Counsel for the Appellants, Learned APP for Respondent No.1-State and Learned Counsel for Respondent No.2-victim.

5. Learned Counsel for the Appellants submits that there is a delay of two days in lodging the FIR. It is submitted that initially the crime was registered only for the offences under the Bharatiya Nyaya Sanhita and after ten days, the offences under the SC & ST Act came to be invoked against the Appellants. Learned Counsel for the Appellants submits that Appellants are ready and willing to stay out of Yeola Taluka till conclusion of trial and has tendered the Affidavit-cum-Undertaking of the Appellants to that effect. The Affidavits-cum-Undertaking of the Appellants are taken on record and marked 'X' collectively for the purpose of identification.

6. On the other hand, Learned APP for Respondent No.1-State and Learned Advocate for Respondent No.2 submit that the Appellants are involved in a serious crime of outraging the modesty of the victim. It is submitted that earlier also the Appellants had outraged the modesty of victim and thus there is one more crime pending against them. Learned Counsel for Respondent No.2 submits that after registration of the present crime, the Appellants had threatened the victim and thus non-cognizable offence is registered against them. It is submitted that the Appellants therefore may not be released on anticipatory bail.

7. I have perused the FIR. *Prima-facie* there appears to be delay in lodging the report. Apart from it, initially the offences under the SC & ST Act were not invoked. There appears to be no need of custodial interrogation of the Appellants. Considering the overall facts and circumstances, I am inclined to release the Appellants on anticipatory bail. Hence, the following order:

ORDER

i. The Criminal Appeal is allowed.

ii. The impugned order is set aside.

iii. In the event of the arrest of the Appellants in Crime No.193 of 2026 registered at Yeola Police Station for the offences punishable under Sections 74, 115, 351(2), 324(2) of the Bharatiya Nyaya Sanhita, 2023 and under Sections 3(1)w(i) (ii), 3(2)(va) of the Scheduled Castes and Scheduled Tribes (Prevention of Atrocities) Act, 1989, they shall be released on bail on furnishing a PR Bond in the sum of Rs.25,000/- (Rupees Twenty Five Thousand Only) each with one or two sureties in the like amount.

iv. The Appellants shall not enter into the limits of Yeola Taluka, except to attend the dates before the trial court.

v. The Appellants shall not tamper with the prosecution evidence.

viii. Liberty is granted to the prosecution and to the victim to file an application for cancellation of present anticipatory bail in case the Appellants commit breach of any of the above conditions.

8. The Criminal Appeal is disposed of in the aforesaid terms.

(N.R. BORKAR, J.)